

undue advantage of their adversary's industry and efforts.” (Code Civ. Proc., § 2018.020 (b).) ““Discovery was hardly intended to enable a learned profession to perform its functions ... on wits borrowed from the adversary.”” (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at p. 1494, quoting *Hickman v. Taylor* (1947) 329 U.S. 495, 516 (conc. opn. of Jackson, J.).)

To effectuate these policy concerns, California applies a three-prong test in considering the propriety of attorney depositions. First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege? (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at pp. 1494-96; see also *Estate of Ruchti* (1993) 12 Cal.App.4th 1593, 1601, [affirming protective order against deposition of opposing counsel].)

Carehouse Convalescent Hospital v. Superior Court (2006) 143 Cal.App.4th 1558, 1562-63.

Plaintiff has not met the standard in *Carehouse Convalescent Hospital*. Moreover, plaintiff has not shown how she can compel the deposition of a non-party, absent a subpoena, pursuant to Code Civ. Proc., § 2025.450.

Based on the foregoing, the motion to compel the deposition of defendant’s attorney Robert Gonzalez is denied. The motion to recuse defense counsel under California State Bar Rule 3.7 is denied. The request for sanctions is denied.

9. S-CV-0052777 Reed, Nancy v. Colaw, Ryan

Review Hearing

The court scheduled this hearing for review of a first amended cross-complaint filed under seal pursuant to Insurance Code section 1871.7(e)(2). As a review of the court file reveals no first-amended cross-complaint has been lodged with the court, the review hearing is dropped from calendar.

10. S-CV-0053149 Grussenmeyer, Bonnie J v. Alley, Laura C

This tentative ruling is issued by the Honorable Michael A. Jacques. If oral argument is timely requested, it will be heard on **May 21, 2026 at 8:30 a.m. in Department 40** by Commissioner Jacques.

Motion to Seal

Petitioner moves to seal pages 31 through 184 of the notice of errata filed on November 24, 2025 pursuant to California Rules of Court, rules 2.550 and 2.551. No opposition has